

NEXLEY AI LIMITED — CUSTOMER TERMS AND CONDITIONS

Nexley AI Limited

Registered Office: 66 Paul Street, London, EC2A 4NA

Company number: [to be inserted]

Last updated: 20 May 2026

Version 2.1 (adds clause 4.4A: trial-period cancellation exception; updates clause 3.3 reference)

1. BACKGROUND AND PARTIES

1.1 These Terms and Conditions (these "Terms") are entered into between Nexley AI Limited, a company registered in England and Wales with registered office at 66 Paul Street, London, EC2A 4NA ("Nexley AI", "we", "us", "our") and the customer identified on the order, sign-up page or invoice (the "Customer", "you", "your").

1.2 By signing up for, accessing or using the Service, you agree to be bound by these Terms. If you are entering into these Terms on behalf of a business, you confirm that you have authority to bind that business and references to "you" mean that business.

1.3 These Terms, together with the Privacy Policy at nexley.ai/privacy, the Data Processing Agreement, and any order form or pricing schedule signed by both parties, form the entire agreement between us in respect of the Service.

2. DEFINITIONS

"AI Employee" means the autonomous AI-driven assistant provided as part of the Service, configured to act on the Customer's behalf across the connected channels and integrations. "Customer Data" means all data, content, messages, contacts, files and other information uploaded by the Customer, generated by the Customer's end-users, or otherwise stored or processed through the Service on the Customer's instructions. "End-User" means any person who communicates with, or whose data is processed through, the AI Employee on the Customer's behalf — including without limitation the Customer's own clients, customers, suppliers and contacts. "Fees" means the subscription fees payable under clause 5. "Outputs" means messages, replies, drafts, quotes, invoices, bills of quantity, summaries, images, documents and other content generated by the AI Employee in the course of the Service. "Seat" means a single AI Employee account, configured for one named user and covering one business operation, as further described in clause 6. "Service" means the Nexley AI software-as-a-service platform, including the AI Employee, the connected channels and integrations, the customer dashboard, and any related services we provide. "Subscription" means the Customer's paid right to access and use the Service under these Terms. "Trial" means the paid trial period described in clause 3.

3. TRIAL PERIOD

3.1 The Service is offered with a three (3) day paid trial period commencing on the date payment is taken.

3.2 Payment of the first Fee is taken in advance, before the Trial begins. The Trial is not free.

3.3 At the end of the three day Trial, your Subscription automatically converts to a paid monthly Subscription on the terms set out in clause 4. No further action is required from you to convert; if you wish to prevent conversion you must cancel during the Trial in accordance with clause 4.4A.

3.4 Fees paid for the Trial are non-refundable, save where required by mandatory consumer law.

4. SUBSCRIPTION TERM AND CANCELLATION

4.1 Following the Trial, the Subscription continues on a monthly rolling basis. There is no fixed minimum term beyond the current billing month.

4.2 Each monthly Subscription period begins on the date the corresponding Fee is paid and runs for one calendar month.

4.3 Fees are billed monthly in advance.

4.4 Either party may cancel the Subscription by giving the other not less than five (5) days' written notice before the end of the then-current billing month. Cancellation requests must be sent in writing to legal@nexley.ai (or such other address as Nexley AI notifies from time to time).

4.4A (Trial-period exception.) Notwithstanding clause 4.4, the Customer may cancel during the Trial at any time before the Trial ends, with immediate effect, by clicking "Cancel subscription" in the Nexley dashboard (under Settings → Billing) or emailing legal@nexley.ai. A cancellation that takes effect during the Trial prevents conversion to a paid Subscription under clause 3.3, and no Fees are charged beyond the Trial Fee already paid under clause 3.2.

4.5 Where the Customer cancels, the Service remains active until the end of the billing month for which payment has already been taken. No pro-rata refund is given for unused days; the Customer's access simply ceases at the end of that billing period (see clause 5.4).

4.6 Nexley AI may, on five (5) days' written notice, terminate or refuse to renew a Subscription for any reason, without prejudice to any rights to terminate immediately set out elsewhere in these Terms.

5. FEES

, PAYMENT AND REFUNDS

5.1 The Service is priced on a per-seat basis. The standard list Fee is £599 per Seat per calendar month, payable monthly in advance. Each Seat provides access for one named user only (see clause 6.4).

5.2 Enterprise pricing is available for Customers requiring higher capacity, multiple connected businesses, or bespoke configuration. Enterprise Fees are agreed individually based on usage and recorded in a separate order form which forms part of these Terms.

5.3 Nexley AI is not currently registered for UK VAT. Fees are therefore not subject to VAT. If Nexley AI becomes VAT-registered during the term of a Subscription, Nexley AI will give the Customer not less than thirty (30) days' notice before VAT is applied to future invoices.

5.4 Fees are non-refundable. If the Customer cancels, terminates or otherwise ceases use of the Service mid-month, the Customer will not receive a refund for any unused portion of the billing month and the Customer's access to the Service will simply cut off at the end of the period for which Fees have been paid.

5.5 If a payment is refused, declined or charged back, Nexley AI may suspend access to the Service immediately and without notice. The Customer must remedy the failed payment within seven (7) days; failing which Nexley AI may terminate the Subscription under clause 18.

5.6 Nexley AI may amend its Fees on not less than thirty (30) days' written notice. If the Customer does not accept a Fee change, the Customer may cancel under clause 4.4 before the change takes effect.

6. SCOPE OF THE SERVICE

6.1 Subject to the Customer paying the Fees, Nexley AI grants the Customer a non-exclusive, non-transferable right during the Subscription to access and use the Service in accordance with these Terms.

6.2 Each Seat entitles the Customer to one AI Employee covering one business operation. A single Seat at the standard Fee includes, as a flat fee with no priced add-ons: (a) WhatsApp channel access; (b) email channel access; (c) the customer dashboard; (d) the integrations connected by the Customer via the dashboard (subject to the third-party services being available and the Customer's own accounts on those services being in good standing).

6.3 The flat Fee is all-inclusive: no additional charges are levied for use of the listed channels, dashboard or connected integrations within the Fair Use levels set out in clause 7.

6.4 Each Seat is assigned to one named individual user at the point of sign-up. That named user is fixed for the life of the Subscription. The Customer may not change, swap or rotate the named user during the Subscription; a new named user requires a new Subscription.

6.5 The Service is provided for the Customer's own business use. The Customer may not resell, sub-licence, white-label, or otherwise make the Service available to any third party.

7. FAIR USE

7.1 The Service is provided for normal business use by a single tradesperson or business. "Normal use" means generating quotes, invoices, bills of quantity, compliance references and related queries in the ordinary course of one trade business. As a guideline, this corresponds to up to approximately 200 job interactions or 1,500 assistant messages per calendar month.

7.2 The Service may not be shared between multiple businesses, resold, sub-licensed, or accessed via automated, scripted or bulk means.

7.3 Where usage materially and consistently exceeds fair-use levels, Nexley AI may contact the Customer to discuss the Customer's requirements and may, acting reasonably, apply rate limits, request migration to an appropriate higher-tier plan, or suspend Service following notice.

8. CUSTOMER RESPONSIBILITY FOR AI EMPLOYEE ACTIONS

8.1 The AI Employee acts on the Customer's behalf. The Customer is responsible for everything done by the AI Employee on, from or through the Customer's account, including without limitation: (a) messages, replies and other communications sent by the AI Employee to End-Users; (b) appointments booked, rescheduled or cancelled; (c) quotes, invoices, bills of quantity and other documents prepared or issued; (d) data shared with End-Users or third parties; and (e) any decisions or commitments made by the AI Employee that the Customer does not override.

8.2 The Customer is responsible for configuring, supervising and monitoring the AI Employee. The Customer must review Outputs and take prompt corrective action where an Output is incorrect, inappropriate or undesired.

8.3 The Customer's responsibility for actions of the AI Employee survives any later claim that the action was unintended, mis-configured, or the result of an AI error, save to the extent of Nexley AI's wilful misconduct or fraud.

9. AI OUTPUTS — NO WARRANTY OF ACCURACY

9.1 Outputs are generated by an AI system and may contain errors, inaccuracies, omissions or unsuitable content. Nexley AI gives no warranty, express or implied, that Outputs will be accurate, complete, current, error-free, fit for any particular purpose or free from bias.

9.2 Outputs are not, and must not be treated as, legal, financial, accounting, tax, medical, regulatory or other professional advice. Where the Customer or an End-User requires such advice, the Customer must obtain it from an appropriately qualified human professional.

9.3 The Customer remains solely responsible for any decision made, action taken or document issued in reliance on an Output.

10. HUMAN IN THE LOOP — HIGH-STAKES ACTIONS

10.1 The Customer must maintain meaningful human oversight of the AI Employee. In particular, the Customer agrees that a competent human (the Customer or an authorised representative) must review and approve, before the AI Employee acts, any of the following: (a) financial transactions, including but not limited to issuing invoices, taking payments, issuing refunds or making transfers; (b) the signing or acceptance of contracts on the Customer's behalf; (c) cancellations or material variations of bookings, contracts or commercial commitments; (d) communications addressed to a regulator, solicitor, insurer, court or other authority; and (e) any action which, if mis-handled, could give rise to material legal, financial or reputational consequences for the Customer or any End-User.

10.2 The specific monetary threshold above which financial transactions require human approval will be configured in the Customer's dashboard. Until a threshold is set, the Customer is taken to have agreed that the AI Employee may not autonomously execute any financial transaction without express human approval.

10.3 Failure by the Customer to maintain human oversight is at the Customer's own risk and does not transfer responsibility to Nexley AI.

11. DISCLOSURE OF AI TO END-USERS

11.1 The Customer is responsible for making any disclosure to End-Users that the End-User is or may be interacting with an AI system, where such disclosure is required by applicable law, regulation, industry code, platform terms (including WhatsApp Business Solution Terms) or reasonable End-User expectation.

11.2 Nexley AI does not provide such disclosure to End-Users on the Customer's behalf and accepts no liability for the Customer's failure to do so.

12. CUSTOMER DATA AND DATA PROTECTION

12.1 As between the parties, the Customer owns all Customer Data and is solely responsible for the accuracy, quality, legality, and rights to use it.

12.2 The Customer is the controller of personal data processed through the Service and Nexley AI is the processor of that personal data. The parties' respective obligations as controller and processor are set out in the Data Processing Agreement, which is incorporated into these Terms by reference and available at nexley.ai/dpa (or as separately executed between the parties).

12.3 The Customer warrants that it has the lawful basis and all necessary rights, consents and notices required to authorise Nexley AI to process Customer Data and personal data of End-Users for the purpose of providing the Service.

12.4 Nexley AI will process personal data only in accordance with the Customer's documented instructions as set out in these Terms, the Data Processing Agreement, and any reasonable written instructions given by the Customer from time to time, except where required to do otherwise by applicable law.

13. INTELLECTUAL PROPERTY

13.1 Nexley AI (or its licensors) owns all intellectual property rights in the Service, including the AI Employee software, dashboard, models, prompts, system architecture, documentation and any improvements thereto. Nothing in these Terms transfers any such rights to the Customer.

13.2 The Customer owns Customer Data and any intellectual property rights in Customer Data.

13.3 Subject to the Customer paying the Fees and complying with these Terms, Nexley AI grants the Customer a non-exclusive, worldwide, royalty-free, perpetual licence to use, copy, modify and distribute the Outputs generated for the Customer for the Customer's own internal business purposes and for legitimate communications with End-Users. This licence to use Outputs continues after termination of the Subscription.

13.4 The Customer grants Nexley AI a non-exclusive, worldwide, royalty-free licence to use Customer Data and Outputs solely as necessary to provide, maintain, secure and improve the Service, and for no other purpose. Nexley AI will not sell Customer Data to third parties.

13.5 Nexley AI may use aggregated and de-identified usage data (which cannot reasonably be used to identify the Customer or any natural person) for analytics, benchmarking and product improvement.

14. CONFIDENTIALITY

14.1 Each party must keep confidential all non-public information of the other party that is marked as confidential or would reasonably be understood to be confidential ("Confidential Information"), and must not use it other than to perform its obligations under these Terms.

14.2 The obligations in clause 14.1 do not apply to information that is or becomes publicly available other than by breach of these Terms, was lawfully known before disclosure, is independently developed, or is required to be disclosed by law (in which case the receiving party will give prompt notice to the disclosing party where lawful).

15. WARRANTIES AND DISCLAIMERS

15.1 Nexley AI warrants that it will provide the Service with reasonable care and skill.

15.2 Save as expressly set out in these Terms, and to the maximum extent permitted by law, Nexley AI excludes all other warranties, conditions, terms and representations (whether express or implied by statute, common law or otherwise), including any implied warranties of satisfactory quality, fitness for a particular purpose, non-infringement, accuracy of Outputs, or uninterrupted or error-free operation.

15.3 The Service is provided on an "as is" and "as available" basis. Nexley AI does not warrant that the Service will operate continuously, will be free from defects, will meet any specific availability target, or will be compatible with every device, browser or third-party integration.

16. LIMITATION OF LIABILITY

16.1 Nothing in these Terms limits or excludes either party's liability for: (a) death or personal injury caused by negligence; (b) fraud or fraudulent misrepresentation; (c) any liability that cannot lawfully be limited or excluded under English law.

16.2 Subject to clause 16.1, Nexley AI is not liable, whether in contract, tort (including negligence), breach of statutory duty or otherwise, for any: (a) loss of profits, revenue, business, contracts or anticipated savings; (b) loss of goodwill or reputation; (c) loss or corruption of Customer Data (the Customer is responsible for maintaining backups of any material Customer Data); (d) wasted management or staff time; (e) loss or damage arising from any reliance on an Output, or from any action taken (or not taken) by the AI Employee on the Customer's behalf; (f) any indirect, special, incidental, punitive or consequential loss or damage, in each case even if Nexley AI was advised of the possibility of such loss or damage.

16.3 Subject to clauses 16.1 and 16.2, Nexley AI's total aggregate liability arising out of or in connection with these Terms and the Service, whether in contract, tort (including negligence), breach of statutory duty or otherwise, in any twelve (12) month rolling period, is limited to the total Fees paid by the Customer to Nexley AI in the twelve (12) months immediately preceding the event giving rise to the claim.

16.4 Nexley AI is not liable for any act or omission of any third-party service provider, integration partner, payment processor or platform provider, including but not limited to WhatsApp/Meta, Google, Microsoft, Apple, Stripe, GoCardless, Xero, Fergus or any other connected service.

17. INDEMNITIES

17.1 The Customer will indemnify, defend and hold harmless Nexley AI and its directors, officers, employees and contractors against all claims, liabilities, losses, damages, costs and expenses (including reasonable legal fees) arising out of or in connection with: (a) the Customer's use of the Service in breach of these Terms; (b) any actions taken by the AI Employee on the Customer's behalf; (c) any Customer Data or any communication sent to or by End-Users through the Service; (d) any breach by the Customer of applicable law, regulation or third-party rights, including data protection laws.

18. SUSPENSION AND TERMINATION

18.1 Without prejudice to any other right or remedy, Nexley AI may suspend the Customer's access to all or part of the Service immediately and without notice if: (a) any Fee is overdue or any payment is failed or charged back; (b) the Customer is in material breach of these Terms; (c) Nexley AI reasonably believes the Customer's use of the Service poses a security risk, breaches applicable law, or risks harm to Nexley AI, other customers, or End-Users.

18.2 Either party may terminate the Subscription immediately by written notice if the other party commits a material breach of these Terms and (where the breach is capable of remedy) fails to remedy that breach within fourteen (14) days of written notice requiring it to do so.

18.3 Nexley AI may terminate the Subscription immediately by written notice if the Customer becomes insolvent, enters into administration, has a receiver appointed, is wound up, or suffers any analogous event under any jurisdiction.

18.4 Termination of the Subscription does not affect any rights or remedies accrued before termination.

19. EFFECTS OF TERMINATION AND DATA EXPORT

19.1 On termination or expiry of the Subscription: (a) all rights granted to the Customer to access and use the Service cease immediately; (b) the Customer must pay any Fees outstanding to the date of termination; (c) the Customer may, within thirty (30) days of termination, request a one-off export of Customer Data in a commonly used machine-readable format. After that thirty day window, Nexley AI may delete Customer Data from its production systems.

19.2 The provisions of clauses 5.4 (no refunds), 8 (Customer responsibility), 9 (AI outputs), 12 (Customer Data and data protection), 13 (intellectual property, including the surviving licence to Outputs), 14 (confidentiality), 16 (limitation of liability), 17 (indemnities), 19 (effects of termination) and 23 (governing law) survive termination of the Subscription.

20. FORCE MAJEURE

20.1 Neither party is liable for any failure or delay in performing its obligations under these Terms (other than obligations to pay money) caused by events beyond its reasonable control, including acts of God, war, terrorism, civil unrest, pandemic, government action, cyber-attack, internet or telecommunications outage, or failure of third-party infrastructure.

21. NOTICES

21.1 Notices to Nexley AI under these Terms must be sent in writing to legal@nexley.ai with a copy to 66 Paul Street, London, EC2A 4NA.

21.2 Notices to the Customer may be sent to the email address registered on the Customer's account. Notices are deemed received on the next business day after sending where sent by email, or two (2) business days after posting where sent by first-class post.

22. GENERAL

22.1 Assignment. The Customer may not assign, novate or transfer any of its rights or obligations under these Terms without Nexley AI's prior written consent. Nexley AI may assign these Terms freely.

22.2 No partnership or agency. Nothing in these Terms creates a partnership, joint venture, employment or agency relationship between the parties.

22.3 Waiver. A failure or delay by either party to exercise any right under these Terms is not a waiver of that right.

22.4 Severability. If any provision of these Terms is found to be invalid or unenforceable, that provision will be modified to the minimum extent necessary to make it enforceable, and the remaining provisions will continue in full force and effect.

22.5 Entire agreement. These Terms (together with the Privacy Policy, the Data Processing Agreement and any order form signed by both parties) constitute the entire agreement between the parties in respect of the Service and supersede all prior representations, agreements or understandings.

22.6 Third parties. A person who is not a party to these Terms has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any of these Terms.

22.7 Variation. Nexley AI may amend these Terms from time to time. Changes will be notified to the Customer by email or via the dashboard not less than thirty (30) days before they take effect. Continued use of the Service after that date constitutes acceptance.

23. GOVERNING LAW AND JURISDICTION

23.1 These Terms and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with them or their subject matter or formation, are governed by and construed in accordance with the laws of England and Wales.

23.2 The parties irrevocably submit to the exclusive jurisdiction of the courts of England and Wales to resolve any such dispute or claim.

24. CONTACT

Nexley AI Limited 66 Paul Street, London, EC2A 4NA Email: legal@nexley.ai END OF TERMS

